

TENTATIVE RULINGS**9/03/2026****02:00 PM**

100	Lopez vs. Fairmont Schools, Inc., a California corporation 2022-01269531	Final Accounting Plaintiff Marcus Lopez’s Final Accounting hearing is CONTINUED to October 29, at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed funds after the check-cashing deadline have been delivered to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees, that the administrator’s work is complete, and that the Court’s file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling to Defendant.
101	Rojo vs. Farwest Insulation Contracting, a California corporation 2022-01259062	Final Accounting The court finds all settlement distribution efforts are fully concluded. The administrator’s final report (ROA 301) is thus approved, and the court’s file is closed. Plaintiff to give notice of the court’s ruling and file proof of service.
102	Fulfer vs. CareCar, Inc. 2022-01299427	1.Motion to Be Relieved as Counsel of Record 2. Status Conference Attorney Tamar G. Arminak of the law firm Arminak Law, APC’s motion to be relieved as counsel of record for Defendant Carecar, Inc. is GRANTED , effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order that lists in ¶ 7 updated information on the next scheduled hearing. The Court notes that a corporation may not represent itself in propria persona but must be represented by a licensed attorney. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1150 [“court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable

		time”].) Defendant Carecar, Inc. shall obtain counsel within a reasonable time. Moving counsel shall give notice of this ruling.
103	PIRIZ vs. CARECAR, INC. 2022-01292639	1. Motion to Be Relieved as Counsel of Record 2. Status Conference Attorney Tamar G. Arminak of the law firm Arminak Law, APC’s motion to be relieved as counsel of record for Defendant Carecar, Inc. is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order that lists in ¶ 7 updated information on the next scheduled hearing. An order to show cause is set for October 15, 2026 at 9:30AM. in Department CX102. At the hearing, the Court will strike Defendant Carecar, Inc.’s answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and “court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time”].) Moving counsel shall give notice of this ruling.
104	Barrera vs. KWK Trucking, Inc. 2023-01349709	1.Motion for Leave to File Amended Complaint 2. Case Management Conference Plaintiff Luis Barrera’s Motion for Leave to File First Amended Complaint is DENIED in part and GRANTED in part. (Code Civ. Proc. [CCP], §§ 473, subd. (a)(1), 576; Cal. Rules of Court [CRC], rule 3.1324.) Legal Standards Procedural Requirements California Rules of Court (CRC), rule 3.1324(a) requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and